

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Yolexis Rodriguez	Team: Squad #15	CCRB Case #: 201805703	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 07/14/2018 12:00 AM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 1/14/2020	Precinct: 75		
Date/Time CV Reported Sat, 07/14/2018 6:10 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 07/14/2018 6:10 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Henry Henriquez	08780	938657	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Georin Duran	26108	950361	075 PCT
2. POM Kevin Pereira	25726	964208	075 PCT
3. POM Christophe Hosein	17209	959417	075 PCT
4. POM Christophe Andree	17996	960162	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Henry Henriquez	Discourtesy: Police officer Henry Henriquez spoke discourteously to § 87(2)(b)	A . Complainant Unavailable

Case Summary

§ 87(2)(b) called the CCRB and filed the following complaint on July 14, 2018. § 87(2)(b) provided a mailing address; he did not provide a phone number. A search of the New York City Police Department BADS Database performed on July 17, 2018 listed a cell phone number on a July 1, 2016 arrest report. A Lexis Nexis database search performed on July 17, 2018 located an address different than the address § 87(2)(b) provided. No phone numbers were located, however, two e-mail addresses were found.

On July 17, 2018, contact e-mails were sent to the two e-mail addresses found via Lexis Nexis; an e-mail sent to one of the e-mail addresses was returned electronically as undeliverable. On the same day a contact letter was mailed to the address § 87(2)(b) provided. Between July 18, 2018 and July 27, 2018, four calls were made to the phone number found for § 87(2)(b) in the arrest report; during each instance an automated 'not in service' message was received. On July 27, 2018, a second contact letter was sent via e-mail and mail to the address provided.

On July 31, 2018, a CLEAR database search revealed three potential phone numbers. Follow up calls determined that two of the phone numbers did not belong to § 87(2)(b). Between July 31, 2018 and August 9, 2018, four calls were made to the third phone number; during each instance an automated 'subscriber not accepting calls message' was received. Between July 31, 2018 and August 9, 2018, four calls were made to the phone number provided by § 87(2)(b) during each instance an automated 'not in service' message was received. A third contact letter was mailed to § 87(2)(b) on August 9, 2018. None of the contact letters were returned as undeliverable by the United States Postal Service.

A search of the New York City Department of Correction website on August 15, 2018, confirmed that § 87(2)(b) was not incarcerated. Body worn camera footage of the incident can be found in IAs 21 through 26. § 87(2)(g)

§ 87(2)(g)
it is therefore recommended that this case be closed as **Complainant Unavailable**.

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date